

FAMILY LAW

1. HINDU MARRIAGE ACT 1955
2. THE HINDU SUCCESSION ACT, 1956
3. THE HINDU MINORITY & GUARDIANSHIP ACT, 1956
4. THE HINDU ADOPTION & MAINTENANCE ACT, 1956

Conditions for marriage

Section 5 of The Hindu Marriage Act specifies that conditions must be met for a marriage to be able to take place. If a ceremony takes place, but the conditions are not met, the marriage is either void by default, or voidable.

Ceremonies

Section 7 of the Hindu Marriage Act recognises that there may be different, but equally valid ceremonies and customs of marriage. As such, Hindu marriage may be solemnized in accordance with the customary rites and ceremonies of either the bride or the groom. These rites and ceremonies include the Saptapadi and Krevā.

Grounds for divorce

A marriage may be dissolved by a court order on the following grounds:

1. **Adultery** - the respondent has had voluntary sexual intercourse with a man or a woman other than the spouse after the marriage.
2. **Cruelty** - the respondent has physically or mentally abused the petitioner.
3. **Desertion** - the respondent has deserted the petitioner for a continuous period of not less than two years.
4. **Conversion to another religion** - the respondent has ceased to be a Hindu and has taken another religion.
5. **Unsound mind** - the respondent has been diagnosed since the marriage ceremony as being unsound of mind to such an extent that normal married life is not possible.

6. **Disease** - the respondent been diagnosed with an incurable form of leprosy or has venereal disease in a communicable form.
7. **Presumption of death** - the respondent has not been seen alive for seven years or more.
8. **No resumption of cohabitation after a decree of judicial separation** for a period of at least one year.

MARRIAGE-Marriage is a contract underlying a lifelong partnership based on mutual consent on the part of a man and woman," says Ashabah in Abdul Kadir v. Salima. •

Muslim law is derived from several codified and uncoded sources, including the Quran, Ijma, Qiyas, customs, urf, precedents, equity, and various laws.

POLYGAMY

NIKAH HALALA

A. Talaq-ul-Sunnat:-

This form of Talaq is based on the Prophet's tradition (Sunna) and as such is considered as most approved form of Talaq

1. Talaq-Ahsan:-

This is the most proper form of repudiation of marriage. The reason is twofold: First, there is possibility of revoking the pronouncement before expiry of the Iddat period. Secondly, the evil words of Talaq are to be uttered only once

2. Talaq Hasan (Proper):

This Talaq is also regarded to be the proper and approved form of Talaq. In this form too, there is a provision for revocation. But it is not the best mode because evil words of Talaq are to be pronounced three times in the successive Tuhrs.

B. Talaq-ul-Bidaat (Irrevocable):

This Talaq is also known as Talaq-ul-Bain. It is a disapproved mode of divorce. A peculiar feature of this Talaq is that it becomes effective as soon as the words are pronounced and there is no possibility of reconciliation between the parties.

The Prophet never approved a Talaq in which there was no opportunity for reconciliation.

Iddat Iddah, also known as Iddat, is an Arabic term that refers to a time of waiting observed by Muslim women. It is a period of chastity that a

Muslim woman must follow after her marriage has ended due to her husband's death or divorce before she can legally marry again. The aim of observing the iddat period is to determine whether or not the woman is pregnant and to confirm paternity.